

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE PARRILLA and NARCISO ROSARIO,

Index No.

Plaintiffs,

Plaintiff designates

-against-

Bronx County as the place of trial

CITY OF NEW YORK, RICHARD MCKNIGHT,
DHARLYN VASQUEZ, and JOHN or JANE DOES 1-10,

The basis of the venue is where the
injury occurred

Defendants.

SUMMONS

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
October 24, 2019



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TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
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RICHARD MCKNIGHT
48th NYPD Precinct
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Bronx, New York, 10457

DHARLYN VASQUEZ
48th NYPD Precinct
450 Cross Bronx Expy
Bronx, New York, 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JOSE PARRILLA and NARCISO ROSARIO,**VERIFIED COMPLAINT**

Plaintiff,

Index No.

-against-

CITY OF NEW YORK, RICHARD MCKNIGHT,
DHARLYN VASQUEZ, and JOHN or JANE DOES 1-10,Defendants.

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Plaintiffs, Jose Parrilla and Narciso Rosario, by and through the undersigned attorneys, Sim & DePaola, LLP, for their complaint against the Defendants, City of New York, individually and in their official capacities as New York City police officers, Richard McKnight, Dharyln Vasquez, and John or Jane Does 1-10, alleges and states as follows:

1. This is a civil rights action, in which plaintiffs seek relief, vis-à-vis 42 U.S.C. §§ 1983, 1985, 1986 and 1988, the common law of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of their civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.
2. The following claims arise from an October 24, 2016 incident, in which defendants, acting under color of state law, unlawfully stopped, questioned, searched, arrested and detained Mr. Jose Parrilla and Mr. Narciso Rosario, in the vicinity of the East 178th Street and Hughes Avenue, within the County of Bronx, City and State of New York. Mr. Parrilla was the victim of

additional excessive force at the hands of the defendants, including but not limited to being tasered by said defendants two (2) to three (3) times. Mr. Parrilla and Mr. Rosario were each unlawfully strip-searched with cavity inspections at the police precinct.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. This action and associated claims have been timely commenced within all applicable statutes of limitations.

5. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

6. Plaintiff, Jose Parrilla, ("Mr. Parrilla"), who was arrested and prosecuted under the incorrect name of Jose Sanchez, presently resides at 1070 Bryant Avenue, Apt. 2A, Bronx, New York 10459.

7. Plaintiff, Narciso Rosario, ("Mr. Rosario") presently resides at 1384 Bristow Street, Apt. 3B, Bronx, New York, 10459.

8. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

9. At all times relevant hereto, defendant City, acting through the New York City Police Department ("NYPD") or the Bronx County District Attorney's Office ("BCDA"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision,

discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD and Bronx County District Attorney's Office defendants herein.

10. In addition, at all times here relevant, defendant, City, was responsible for enforcing the rules or regulations of the NYPD and BCDA, and for ensuring that the NYPD and BCDA personnel obey the laws and constitutions of the United States and the State of New York.

11. Defendant, Richard McKnight ("McKnight"), was, at all times here relevant, a police officer employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the defendant, City of New York. Defendant McKnight was, at the times relevant herein, a police officer, assigned to 48th NYPD Precinct, located at 450 Cross Bronx Expy, Bronx, New York, 10457. Defendant McKnight is being sued in her individual and official capacities.

12. Defendant, Dharlyn Vasquez ("Vasquez"), was, at all times here relevant, a police officer or police detective employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the defendant, City of New York. Defendant Vasquez was, at the times relevant herein, a police officer or detective, assigned to the 48th NYPD Precinct, located at 450 Cross Bronx Expy, Bronx, New York, 10457. Defendant Vasquez is being sued in his individual and official capacities.

13. Defendant, Sergeant John Doe I ("Sergeant John Doe I"), which is a fictitious name because his real name is not known at this time, was, at all times here relevant, a police officer, sergeant or police detective employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the defendant, City of New York. Defendant Sergeant John Doe I was, at the times relevant herein, a police officer, sergeant or detective, assigned to the

48th NYPD Precinct, located at 450 Cross Bronx Expy, Bronx, New York, 10457. Defendant Sergeant John Doe 1 is being sued in his individual and official capacities.

14. At all relevant times, defendants John or Jane Does 1 through 10 were police officers, detectives, supervisors, policymakers or officials employed by the NYPD, BCDA or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of defendants, John or Jane Does 2 through 10, as such knowledge is within the exclusive possession of defendants.

15. At all relevant times herein, defendants John or Jane Does 1 through 10 were acting as agents, servants and employees of the City of New York, BCDA or the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.

16. At all relevant times herein, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

17. On, or about, October 24, 2016, at approximately 9:40 p.m., in the vicinity of East 178th and Hughes Avenue, Bronx County, New York, Mr. Parrilla and Mr. Rosario were unlawfully approached by defendants, including McKnight, Vasquez and Sergeant John Doe 1, while they were sitting in a parked vehicle.

18. On said date, time and location, plaintiff Mr. Rosario was seated in the driver's seat and Mr. Parrilla was seated in the front passenger seat of said vehicle.

19. Defendants, including McKnight and Vasquez, unlawfully approached plaintiffs even though plaintiffs had not committed any crimes or violations of the law and were not acting in a suspicious manner.

20. Defendants, including McKnight and Vasquez and John Doe 1, then began to unlawfully question plaintiffs without any legal reason to do so.

21. Defendants, including McKnight, Vasquez and John Doe 1, approached, stopped, questioned, arrested and maliciously prosecuted solely because of their status as Hispanic or Latino males.

22. Defendants, including McKnight, Vasquez and John Doe 1, failed to approach, stop, question, arrest or maliciously prosecute other non-Hispanic male individuals, who were seated in their vehicles at the same approximate time and place as plaintiffs.

23. Defendants, including McKnight and Vasquez and John Doe 1, then asked Mr. Rosario for his license and registration.

24. Mr. Rosario complied and provided his license and the registration to said vehicle even though the defendants had no legal reason to request said identification or inquire of plaintiffs at all.

25. Defendants, including McKnight and Vasquez, and John Doe 1 then asked Mr. Rosario and Mr. Parrilla to exit the vehicle even though there was no reasonable suspicion or probable cause to do so. Mr. Rosario and Mr. Parrilla complied with the officer orders and exited said vehicle.

26. Mr. Parrilla then asked the officers why he was being detained.

27. Defendants, including McKnight and Vasquez, refused to answer Mr. Parrilla's inquiry.

28. Defendants, including McKnight and Vasquez and John Doe 1, then proceeded to falsely arrest and handcuff Mr. Rosario and Mr. Parrilla.

29. Defendants, including McKnight and Vasquez, then falsely arrested and handcuffed Mr. Rosario.

30. Mr. Parrilla again requested that the defendant officers provide him with a reason why he was being detained and handcuffed.

31. Defendants, including McKnight and Vasquez, Sergeant John Doe I, then committed multiple assault and batteries to Mr. Parrilla, including but not limited to tasing him two (2) to three (3) times and then punching and kicking him.

32. Mr. Parrilla was also placed in handcuffs too tightly by defendants, including McKnight, Vasquez and John Doe 1.

33. Mr. Rosario watched in fear as Mr. Parrilla was beaten and tasered by defendant officers, including McKnight, Vasquez and John Doe 1.

34. Mr. Rosario then left the scene of the arrest, because he was in great fear that he would also become the victim of police brutality and excessive force.

35. At no point did defendants, including McKnight and Vasquez, ever observe Mr. Parrilla or Mr. Rosario in possession of any contraband or other illegal item, constructively or otherwise.

36. At no point did defendants, including McKnight and Vasquez, ever possess, recover or observe any evidence reasonably calculated to establish or prove that Mr. Rosario or Mr. Parrilla were in possession of any controlled substance or other illegal item.

37. Defendants, including McKnight and Vasquez and John Doe 1, participated in the investigation that resulted in the unlawful arrests and malicious prosecution of Mr. Rosario and Mr. Parrilla.

38. On October 25, 2019, Mr. Rosario turned himself into the 48th NYPD precinct and was unlawfully handcuffed, falsely arrested and taken into custody even though there was no probable cause to do so.

39. Defendants, including McKnight and Vasquez and John Doe 1, forwarded false information to the Bronx County District Attorney's Office, namely that defendants possessed a valid reason to approach, stop, question and arrest Mr. Rosario and Mr. Parrilla, that defendants observed plaintiffs in possession of a controlled substance, as well as the aforementioned fabricated evidence against plaintiffs, despite each defendant being fully aware of plaintiffs' complete innocence and that the information was completely made-up to ensure that plaintiffs were zealously prosecuted.

40. Defendant Sergeant John Doe 1 was the supervising sergeant assigned to Mr. Rosario and Mr. Parrilla's arrests, who authorized, approved and/or ordered the arrests and criminal prosecutions of plaintiffs, despite his full knowledge that plaintiffs had committed no crimes or violations of the law.

41. Defendants, including McKnight, Vasquez and John Doe 1, fabricated evidence against plaintiffs, including their own observations of plaintiffs in possession of marijuana and/or controlled substances, all of which never actually transpired.

42. Mr. Rosario and Mr. Parrilla were subjected to an unlawful strip-searches inside of a police precinct, believed to be the 48th NYPD Precinct, by, or at the direction of, defendants, including McKnight, Vasquez, and Sergeant John Doe 1.

43. Defendants, including McKnight, Vasquez, and John Doe 1 arrested and caused criminal prosecutions to be initiated against Mr. Rosario and Mr. Parrilla, because of their desires to use plaintiffs' arrests and criminal prosecutions as leverage to compel plaintiffs to provide defendants with information related to other crimes or criminal suspects, to conceal their enormous error in permitting Mr. Rosario, an arrestee in their custody, to escape, as well as to conceal their egregious violations of proper police procedures and gross misconduct, including

their fabrications of non-existent observations, evidence and information and their application of grossly excessively force against Mr. Parrilla.

44. Defendants, including McKnight, Vasquez and John Doe 1, engaged in a conspiracy to falsely arrest and maliciously prosecute Mr. Parrilla and Mr. Rosario by personally verbally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

45. Mr. Rosario and Mr. Parrilla were subjected to said unlawful restrictions upon their liberty over the course of their prolonged detainment, prior to and subsequent to their respective criminal arraignments, including, but not limited to, unlawful detainment and mandatory court appearances.

46. Mr. Parrilla was unlawfully detained for approximately two (2) months, until all charges against were summarily dismissed on December 21, 2016, except for the non-criminal charge of disorderly conduct.

47. The criminal prosecution against Mr. Rosario terminated on May 15, 2018 when all criminal charges related to his aforementioned arrest were dismissed and sealed.

48. Plaintiff asserts that the defendants, including Defendants, including McKnight and Vasquez, who violated plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such

egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

49. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

50. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculpated via some incontrovertible form of evidence.

51. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually

indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

52. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

53. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

54. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking

Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

55. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

56. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff’s arrest without probable cause.

57. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

58. Defendants' actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

59. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.

60. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.

61. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past

constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including McKnight and Vasquez.

62. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein.

63. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

64. The aforementioned acts of defendants, including the City, Defendants, including McKnight and Vasquez, directly or proximately resulted in the deprivation or violation of Mr. Rosado and Mr. Parrilla's civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

65. As a direct or proximate result of said acts, Mr. Rosado and Mr. Parrilla were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION**Unlawful Search and Seizure Under
New York State Law**

66. The above paragraphs are here incorporated by reference as though fully set forth herein.

67. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

68. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

69. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

70. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

71. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

72. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

73. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION**Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants**

74. The above paragraphs are here incorporated by reference as though fully set forth herein.

75. Defendants subjected plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

76. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

77. Plaintiffs did not consent to the unreasonable searches and seizures to their persons or property.

78. The unreasonable searches and seizures to plaintiffs' persons and property were not otherwise privileged.

79. Accordingly, defendants violated plaintiffs' rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

80. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under New York State Law

81. The above paragraphs are here incorporated by reference as though fully set forth herein.

82. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

83. Plaintiffs were conscious of their confinement.

84. Plaintiffs did not consent to their confinement.

85. Plaintiffs' arrests and false imprisonments were not otherwise privileged.

86. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

87. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

88. The above paragraphs are here incorporated by reference as though fully set forth herein.
89. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
90. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
91. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
92. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

93. The above paragraphs are here incorporated by reference as though fully set forth herein.
94. At all relevant times, Defendants caused Plaintiffs to fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.
95. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent or justification to do so.
96. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered damages.
97. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

99. The above paragraphs are here incorporated by reference as though fully set forth herein.

100. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.

101. Defendants engaged in and subjected Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.

102. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

103. The above paragraphs are here incorporated by reference as though fully set forth herein.

104. Defendants initiated the prosecutions against Plaintiffs.

105. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.

106. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

107. The prosecutions were terminated in Plaintiffs' favors, when all criminal charges were dismissed and sealed.

108. Due to the intentional, willful and unlawful acts of Defendants, Plaintiffs suffered significant damages.

109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

111. The above paragraphs are here incorporated by reference as though fully set forth herein.

112. Defendants initiated the prosecutions against Plaintiffs.

113. Defendants lacked probable cause to believe Plaintiffs were guilty or that the prosecutions would succeed.

114. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

115. The prosecutions were terminated in Plaintiffs' favors, when all criminal charges were dismissed and sealed.

116. Defendants violated Plaintiffs' Fourth and Fourteenth Amendment rights by causing Plaintiffs to remain unlawfully incarcerated after their arraignments and/or compelling their appearances at subsequent court dates.

117. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

118. The above paragraphs are here incorporated by reference as though fully set forth herein.

119. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

120. Defendants had no excuse or justification to forcibly detain or initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.

121. Defendants intended to inflict substantial harm upon Plaintiffs.

122. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions and convictions.

123. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth herein.

126. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

127. Defendants had no excuse or justification to forcibly detain and initiate prosecutions against Plaintiffs, especially with the absence of any cognizable probable cause.

128. Defendants intended to inflict substantial harm upon Plaintiffs.

129. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecutions and convictions.

130. Defendants' actions deprived Plaintiffs of their constitutional rights to free from illegal searches and seizures and to not be deprived of their liberty without the due process of law.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision and forwarded said false information to the Bronx County District Attorney's Office.

134. Defendants' actions violated plaintiffs' rights to a fair trial, resulting in deprivations to their liberty.

135. Accordingly, defendants violated Plaintiffs' right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

136. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

137. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

138. The above paragraphs are here incorporated by reference as though fully set forth herein.

139. Defendants fabricated false evidence to be used against Plaintiffs that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.

140. Defendants' actions violated plaintiffs' rights to a fair trial, resulting in deprivations to their liberty.

141. Accordingly, defendants violated Plaintiffs' right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

143. The above paragraphs are here incorporated by reference as though fully set forth herein.

144. Plaintiffs are male Hispanics or Latinos and members of a protected class.

145. Defendants intentionally discriminated against Plaintiffs on the basis of their race, national origin, ethnicity and/or sex.

146. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

147. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as color, race, ethnicity, national origin, sex, an intent to inhibit or punish Plaintiffs' exertion of their Constitutional rights, and/or a malicious or bad faith intent to injure Plaintiffs.

148. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

149. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

150. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

151. Accordingly, defendants violated Plaintiffs' Constitutionally protected rights, pursuant to the Fourteenth Amendment to the United States Constitution and Article I, Section 11, the New York State Constitution, as well as Article VII, Section 79-n, of the New York State Civil Rights Law.

152. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

154. The above paragraphs are here incorporated by reference as though fully set forth herein.

155. Plaintiffs are male Hispanics or Latinos and members of a protected class.

156. Defendants discriminated against Plaintiffs on the basis of their race, national origin, ethnicity and/or sex.

157. Defendants also selectively treated Plaintiffs in comparison to others similarly situated.

158. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as color, race, ethnicity, national origin, sex, an intent to inhibit or punish Plaintiffs' exertion of their Constitutional rights, and/or a malicious or bad faith intent to injure Plaintiffs.

159. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

160. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

161. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

162. Accordingly, defendants violated Plaintiffs' Constitutionally protected rights, pursuant to the Fourteenth Amendment to the United States Constitution and Article I, Section 11, the New York State Constitution, as well as Article VII, Section 79-n, of the New York State Civil Rights Law.

163. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

164. The above paragraphs are here incorporated by reference as though fully set forth herein.

165. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberty or property without due process of law, their equal protection of the laws of the and/or of their privileges and immunities under the laws and constitutions of the United States and of the State of New York.

166. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

167. As a result, Plaintiffs sustained injuries to their persons, were deprived of their liberty and were deprived of the rights or privileges of citizens of the United States.

168. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

169. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

170. Accordingly, defendants violated Plaintiffs' rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

171. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

172. The above paragraphs are here incorporated by reference as though fully set forth herein.

173. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

174. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

175. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

176. The above paragraphs are here incorporated by reference as though fully set forth herein.

177. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

178. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

179. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

180. The above paragraphs are here incorporated by reference as though fully set forth.

181. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

182. Defendant City breached those duties of care.

183. Defendant City placed defendants in a position where they could inflict foreseeable harm.

184. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

185. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

186. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

187. The above paragraphs are here incorporated by reference as though fully set forth.

188. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiffs, to such violative behavior.

189. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

190. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees, such as the individually named defendants herein.

191. Defendant City's employees engaged in such egregious and flagrant violations of plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees, such as the individually named defendants herein.

192. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

193. Defendant City's conduct caused the violation of plaintiffs' civil rights enumerated within the Constitution of the United States, under the Fourth, Fifth, Sixth and Fourteenth Amendments.

194. As a direct and proximate result of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - t) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - u) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiffs demands a trial by jury.

Dated: October 24, 2019

Respectfully submitted,

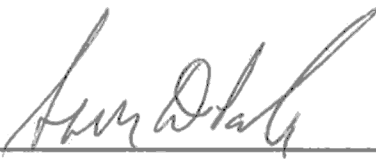


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ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
October 24, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOSE PARRILLA and NARCISO ROSARIO,

Plaintiffs,

-against-

CITY OF NEW YORK, RICHARD MCKNIGHT, DHARLYN VASQUEZ and JOHN or JANE
DOES 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard
Suite 201
Bayside, New York 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for